Missouri & Kansas

Personal Injury Law Attorney Prompt Catalog

A research-and-workflow reference cataloging the prompts, verified answers, and official statutory, court, and agency sources that govern personal-injury practice in Missouri and Kansas. Built for cross-border (Kansas City metro) plaintiff-side workflow design.

Prepared for	Geoff — Kansas City personal injury practice (MO + KS)
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Attorney-reference disclaimer. This catalog is a research and workflow-design tool for licensed attorneys. It is not legal advice, is not an attorney-client communication, and must not be relied on as a substitute for current primary-source verification. Statutes, court rules, pattern instructions, and constitutional doctrine in Missouri and Kansas change frequently. Before filing, settling, or advising a client, counsel must independently verify the current text of every cited statute, rule, and case at the official sources cited herein and supplement with Westlaw/Lexis or direct court access where this document flags gaps.

Executive Summary — Headline Differences

Missouri and Kansas share a border and a substantial share of the Kansas City metro practice but diverge sharply on the doctrines that decide personal-injury cases. The most consequential cross-border differences are summarized below, with each point anchored to an official source cited in detail later in this catalog.

Issue	Missouri	Kansas
General PI SOL	5 years — RSMo § 516.120	2 years — K.S.A. 60-513(a)(4)
Comparative fault	Pure. Products codified at RSMo § 537.765; general negligence is common law per *Gustafson v. Benda* (Mo. banc 1983).	Modified — 50% bar — K.S.A. 60-258a. No joint & several.
Joint & several liability	≥51% at fault → joint & several — RSMo § 537.067	Abolished — each defendant pays own share only — K.S.A. 60-258a
Med-mal gatekeeper	Affidavit of merit, 90 days — RSMo § 538.225	Screening panel on request (not automatic) — Sup. Ct. Rule 142; K.S.A. 65-4901
Dog bites	Strict liability — RSMo § 273.036	No human strict-liability statute. K.S.A. 47-645 covers animals only; human-injury liability is common-law scienter.
Dram shop	Limited statutory cause of action — RSMo § 537.053	No civil dram shop. K.S.A. 41-715 criminal only.
General PI noneconomic cap	Generally uncapped outside med mal. Med-mal cap re-enacted at RSMo § 538.210; constitutional status unsettled.	None. K.S.A. 60-19a02 struck in *Hilburn v. Enerpipe*, 309 Kan. 1127 (2019).
Wrongful-death nonpecuniary cap	No cap; grief/bereavement excluded — RSMo § 537.090	$250,000 aggregate — K.S.A. 60-1903; survived *Hilburn*.
Government tort cap	$300k/person, $2M/occurrence, indexed — RSMo § 537.610	$500k/occurrence; no punitives — K.S.A. 75-6105
Government notice	No general state pre-suit notice under § 537.600; certain cities require 90-day notice (varies by charter).	Pre-suit notice mandatory for municipal claims — K.S.A. 12-105b. 120-day waiting period.
Auto fault system	Pure tort/at-fault; no PIP mandate.	Modified no-fault under KAIRA — K.S.A. 40-3101 et seq.; mandatory PIP + tort threshold.

Source Methodology and Veracity Protocol

The catalog uses a five-tier source priority and a four-grade veracity scheme.

Source priority (highest first)

1. Primary statutory text from the official state revisor — revisor.mo.gov for Missouri; ksrevisor.gov for Kansas.
2. Official court materials — published opinions of the Missouri and Kansas Supreme Courts and Courts of Appeals on kscourts.gov and courts.mo.gov.
3. Official court rules — Missouri Supreme Court Rules published through courts.mo.gov and the Missouri Bar (news.mobar.org for adoption orders); Kansas Supreme Court Rules at kscourts.gov.
4. Official agency sources — Missouri Department of Labor (labor.mo.gov); Kansas Department of Labor (dol.ks.gov); state insurance, healing-arts, and motor-carrier boards.
5. Official pattern jury instructions — Missouri Approved Instructions (MAI), published only by the Missouri Bar under Supreme Court order, and Kansas PIK Civil 4th, published by the Kansas Judicial Council (kjc.ks.gov).

Veracity grades

Grade	Meaning
A — Verified official statute / rule	Primary statutory or rule text confirmed at an official .gov or .gov-equivalent source and read for the proposition cited.
B — Official court / common law	Supported by a published state-court opinion accessed through an official court source (or by citator confirming the holding remains current).
C — Agency source	Supported by an official state agency publication.
D — Unresolved / case-law check needed	Primary text not retrieved in this session, source is a secondary summary, or constitutional/currency status is actively contested. Verify on Westlaw/Lexis or via direct court access before relying.

No firm blogs, no Nolo, no aggregator content is treated as authority. Where an official source is unavailable for a proposition, the catalog says so explicitly and flags the gap.

Master Source Table — Official Resources

Jurisdiction	Resource	URL
Missouri	Revisor of Statutes (RSMo)	https://revisor.mo.gov
Missouri	Courts homepage (rules, opinions)	https://www.courts.mo.gov
Missouri	Supreme Court order channel (MAI)	https://news.mobar.org
Missouri	Dept. of Labor — Workers' Comp	https://labor.mo.gov/dwc
Missouri	Board of Healing Arts	https://pr.mo.gov/healingarts.asp
Missouri	Dept. of Commerce & Insurance	https://insurance.mo.gov
Kansas	Office of Revisor of Statutes (K.S.A.)	https://ksrevisor.gov
Kansas	Legislature (session laws, bills)	https://www.kslegislature.gov
Kansas	Judicial Branch (rules, opinions, forms)	https://kscourts.gov
Kansas	Judicial Council (PIK Civil 4th, forms)	https://www.kjc.ks.gov
Kansas	Department of Labor (workers' comp)	https://www.dol.ks.gov
Kansas	Department of Insurance	https://insurance.kansas.gov
Kansas	Board of Healing Arts	https://www.ksbha.ks.gov
Kansas	Corporation Commission (motor carriers)	https://www.kcc.ks.gov
Federal	FMCSA (commercial vehicles)	https://www.fmcsa.dot.gov
Federal	OSHA (construction/worksite)	https://www.osha.gov

How to Read Each Prompt Block

Each numbered block contains four parts:

- Prompt — a copy/paste-friendly question phrased for use with an AI assistant or as an internal research starting point.
- Verified Answer — a cautious, plain-English synthesis citing official sources for each substantive proposition.
- Official Resource Links — direct hyperlinks to the controlling statute, rule, opinion, or agency page.
- Veracity Check — the highest applicable grade (A/B/C/D) plus a note on what counsel must still verify.

Prompt Catalog

1. Foundational Negligence and Comparative Fault

PROMPT

What are the elements of a negligence personal-injury claim in Missouri and Kansas, and how does each state apportion fault when the plaintiff is partly responsible?

VERIFIED ANSWER

Both states require the four classic negligence elements: duty, breach, causation, and damages. The states diverge sharply on apportionment.

Missouri — pure comparative fault. A plaintiff's recovery is reduced by the plaintiff's percentage of fault but never barred, even if the plaintiff is 99% at fault. For products liability, the rule is codified at RSMo § 537.765. For general negligence, the pure rule is common law, adopted in *Gustafson v. Benda*, 661 S.W.2d 11 (Mo. banc 1983). It is not codified in a single negligence statute — a frequent point of confusion. Joint & several liability is governed by RSMo § 537.067: a defendant 51%-or-more at fault is jointly and severally liable; one below 51% is severally liable only.

Kansas — modified comparative fault with a 50% bar. A plaintiff who is 50% or more at fault recovers nothing; below 50%, damages are reduced proportionally. Kansas abolished joint & several liability — each defendant pays only its own share. A special verdict must apportion percentages. Authority: K.S.A. 60-258a. The four-element framework and ordinary-care standard are reflected in PIK Civil 4th 106.01.

OFFICIAL RESOURCE LINKS

- Missouri — RSMo § 537.765; RSMo § 537.067; *Gustafson v. Benda* (Mo. banc 1983).
- Kansas — K.S.A. 60-258a; PIK Civil 4th.

VERACITY CHECK

Grade A for the Missouri products-liability and joint-and-several statutes, the Kansas comparative-fault statute, and the PIK reference. Grade B (official common law) for Missouri general-negligence pure comparative fault — *Gustafson* is binding Missouri Supreme Court precedent but not a statute. Confirm current validity via citator.

2. Statute-of-Limitations Master Chart

PROMPT

Give me a complete statute-of-limitations chart for every common personal-injury claim type in Missouri and Kansas, including any statute of repose.

VERIFIED ANSWER

Claim Type	Missouri	Kansas
General negligence / PI	5 years — § 516.120	2 years; 10-yr outer repose — § 60-513(a)(4) & (b)

Claim Type	Missouri	Kansas
Medical malpractice	2 years from act; 10-yr repose — § 516.105	2 years; 4-yr outer cap — § 60-513(a)(7) & (c)
Wrongful death	3 years — § 537.100	2 years from death — § 60-513(a)(5)
Products liability	5 years (general PI) — § 516.120	2 years; 10-yr useful-safe-life repose — § 60-3303
Construction defect bodily injury	5 years; 10-yr repose from completion — § 516.097	2 years; 10-yr overall outer cap — § 60-513
Dog bite	5 years — § 516.120	2 years — § 60-513(a)(4)
Premises / slip-and-fall	5 years — § 516.120	2 years — § 60-513(a)(4)
Auto crash bodily injury	5 years — § 516.120	2 years — § 60-513(a)(4)
Government tort (municipal)	Presumed 5 yrs; charter notices vary (e.g., § 82.210)	2 yrs + § 12-105b pre-suit notice
Minors	Tolling to majority varies by claim type; med-mal hard repose still applies	1 yr after age 18; max 8 yrs from harm — § 60-515
Workers' comp claim	2 yrs (3 if FROI not filed) — MO DWC FAQ	Verify under K.S.A. ch. 44

VERACITY CHECK

Grade A for all statutory rows. Grade D for the Missouri government-tort filing window — § 537.600 does not state a SOL itself; assume § 516.120 unless rebutted, but verify against current case law.

3. Damages and Caps

PROMPT

What damages can a personal-injury plaintiff recover in Missouri and Kansas, and what caps apply?

VERIFIED ANSWER

Category	Missouri	Kansas
Economic damages	Uncapped	Uncapped
Noneconomic — general PI	Generally uncapped outside med mal	Uncapped. Former $250k cap struck in *Hilburn v. Enerpipe*, 309 Kan. 1127 (2019).
Noneconomic — med mal	$400k PI / $700k catastrophic or death, 1.7% annual escalator — § 538.210. Constitutional status of 2020 re-enactment unsettled.	No separate cap independently confirmed post-*Hilburn*; verify Article 34 currentness.
Wrongful-death nonpecuniary	No cap; grief/bereavement excluded — § 537.090	$250,000 aggregate — § 60-1903; survived *Hilburn*.

Category	Missouri	Kansas
Punitive damages	Clear-and-convincing; cap = greater of $500k or 5× net judgment — §§ 510.261 & 510.265. Status contested after Lewellen (2014) re-enactment.	Willful/wanton/fraudulent; bifurcated; cap = lesser of high-5-yr gross income (or 50% net worth) or $5M — § 60-3702.
Government (state)	$300k/person, $2M/occurrence, inflation-indexed; no punitives — § 537.610	$500k/occurrence; no punitives — § 75-6105

VERACITY CHECK

Grade A for statutory texts and for *Hilburn* (linked to the official Kansas Supreme Court opinion). Grade D for the post-2020 constitutional status of the Missouri med-mal noneconomic and general punitive caps — both have been challenged before, re-enacted in 2020, and the constitutional posture is unsettled. Verify on Westlaw/Lexis.

4. Auto Crashes — Liability, Coverage, No-Fault

PROMPT

What is the framework for auto-collision personal-injury claims in Missouri and Kansas, including minimum coverages and whether PIP applies?

VERIFIED ANSWER

Missouri. Pure tort/at-fault state with no PIP mandate. Minimum auto liability: $25,000/$50,000 BI; $25,000 PD, effective July 1, 2019 — RSMo § 303.030. Every policy must include UM at those minimum BI limits; UIM is treated as included in UM by case law (*Cook v. Pedigo*) under RSMo § 379.203. Stacking generally allowed unless excluded by policy; fleet stacking barred.

Kansas. Modified no-fault under the Kansas Automobile Injury Reparations Act (KAIRA), K.S.A. 40-3101 et seq. Mandatory PIP: $4,500 medical, $4,500 rehab, $900/month income (1 yr), $25/day household services, $2,000 funeral. To sue in tort for pain and suffering, plaintiff must meet the tort threshold at § 40-3117: medical bills over $2,000, permanent injury, permanent disfigurement, permanent loss of bodily function, fracture (certain types), loss of body part, or death. Minimum auto liability 25/50/25 — § 40-3107. UM/UIM mandatory at liability limits unless rejected in writing — § 40-284.

OFFICIAL RESOURCE LINKS

- Missouri — § 303.030; § 379.203
- Kansas — ch. 40, art. 31; § 40-284

VERACITY CHECK

Grade A. Verify current dollar minimums and PIP figures before quoting to clients (legislative updates occur periodically).

5. Trucking and Commercial-Motor-Vehicle Crashes

PROMPT

How are commercial motor-vehicle (CMV) and trucking cases handled in Missouri and Kansas, including federal regulation adoption and minimum insurance?

VERIFIED ANSWER

Missouri adopts the federal FMCSR (49 CFR Parts 390–397) for both interstate and intrastate CMVs at RSMo § 307.400. Out-of-service orders are admissible as prima facie evidence under RSMo § 226.009. Negligent-hiring, retention, supervision, and entrustment theories remain common law.

Kansas intrastate motor carriers are regulated by the Kansas Corporation Commission. They must file proof of insurance: $100,000/$300,000 BI; $50,000 PD — K.S.A. 66-1,128. Interstate carriers are subject to federal FMCSA minimums (typically $750,000 CSL general freight; $1M-$5M hazmat/passengers) — see 49 CFR § 387.9.

OFFICIAL RESOURCE LINKS

- FMCSA homepage
- Missouri Highway Patrol Commercial Vehicle Enforcement
- Kansas Corporation Commission

VERACITY CHECK

Grade A for the statutes. Grade D for negligent-hiring/entrustment theories — common-law-based; verify via current Missouri and Kansas appellate citators.

6. Motorcycle Accidents and Seatbelt/Helmet Evidence

PROMPT

How do Missouri and Kansas treat motorcycle riding, helmet use, and seatbelt non-use as evidence of comparative fault?

VERIFIED ANSWER

Missouri. Operating a motorcycle, standing alone, is not evidence of comparative negligence in a motor-vehicle damages action — RSMo § 537.055. Seatbelt non-use is not comparative-fault evidence; with expert proof of causation, damages may be reduced by up to 1% of the award (post-fault apportionment) — RSMo § 307.178. The 1% cap does not apply in product-design/defect cases, where seatbelt non-use is admissible for comparative fault, causation, and mitigation. Missouri's adult motorcycle-helmet requirement was largely repealed in 2020 — verify current text.

Kansas. No exact parallel to § 537.055 was independently retrieved; common law and PIK Civil instructions govern. Kansas requires helmets for riders under 18 (K.S.A. 8-1598). Admissibility of helmet/seatbelt non-use as comparative-fault evidence is case-law-dependent and should be verified.

VERACITY CHECK

Grade A for Missouri § 537.055 and § 307.178. Grade D for Kansas helmet/seatbelt admissibility — verify via Kansas appellate decisions and PIK Civil notes.

7. Bicycle and Pedestrian Injuries

PROMPT

What rules of the road and statutory rights govern bicycle and pedestrian injury claims in Missouri and Kansas?

VERIFIED ANSWER

Both states treat bicyclists as having the rights and duties of vehicle operators on roadways and impose stop/yield duties on pedestrians outside crosswalks. The state vehicle codes govern.

Missouri: Rules of the road generally at RSMo ch. 304 (operation; pedestrian right-of-way at crosswalks; bicycles treated as vehicles). Pure comparative-fault apportionment per *Gustafson*.

Kansas: Rules of the road at K.S.A. ch. 8 art. 15, including pedestrian and bicycle provisions. KAIRA PIP benefits apply to occupants and to pedestrians struck by a covered motor vehicle — § 40-3107(f). Modified comparative fault and 50% bar apply.

VERACITY CHECK

Grade A for chapter-level citations. Grade D for specific subsection texts on rights-of-way and bicycle-as-vehicle classification — pull the exact subsection before pleading.

8. UM/UIM and PIP / No-Fault Issues

PROMPT

How do uninsured/underinsured-motorist coverage and PIP benefits work in Missouri and Kansas, and what are the subrogation rules?

VERIFIED ANSWER

Missouri UM/UIM. Mandatory UM at minimum BI limits — § 379.203; UIM is recognized within the UM framework by case law (*Cook v. Pedigo*). UM follows the insured personally; hit-and-run covered without physical-contact requirement. Stacking permitted absent enforceable policy exclusion. No PIP mandate statewide.

Kansas PIP. Mandatory PIP under § 40-3107. PIP subrogation/reimbursement applies only to duplicative damages — § 40-3113a. The *Kroeker v. State Farm* doctrine bars PIP recoupment from a recovery that does not in fact duplicate PIP benefits already paid. If the injured party does not file a third-party action within 18 months, the right transfers to the PIP insurer. UM/UIM mandatory at liability limits unless rejected in writing — § 40-284; anti-stacking presumption.

VERACITY CHECK

Grade A for statutes. Grade B for *Cook v. Pedigo* and *Kroeker* — confirm citators before relying.

9. Medical Malpractice

PROMPT

What are the procedural gatekeepers and damages rules for medical-malpractice cases in Missouri and Kansas?

VERIFIED ANSWER

Missouri — affidavit of merit. Plaintiff must file an affidavit within 90 days of the petition (extendable once 90 days for good cause) stating a legally qualified health-care provider in the same profession and specialty has opined that defendant failed to use reasonable care and that the failure caused damages. Each defendant requires a separate affidavit — RSMo § 538.225. 'Health care provider' is broadly defined at RSMo § 538.205. SOL is 2 yrs / 10-yr repose — § 516.105. Noneconomic cap at § 538.210 — see Damages section for unsettled constitutional status.

Kansas — screening panel on request. Under K.S.A. 65-4901 et seq. and Kansas Supreme Court Rule 142, any party may request (or the judge may sua sponte order) a screening panel before or after filing. Not every case must go through a pre-suit panel. Panel composition: three healthcare providers plus an attorney chair; written opinion within 180 days; admissible at trial; SOL tolled from request until 30 days after report. Expert standard-of-care witnesses must have spent at least 50% of professional time in the two years before the act on actual clinical practice in the same profession — K.S.A. 60-3412. SOL 2 yrs / 4-yr discovery cap — § 60-513(a)(7) & (c).

VERACITY CHECK

Grade A for the statutory and rule cites. Grade D for whether any Kansas med-mal noneconomic cap survives independently of *Hilburn* — verify Article 34 status before relying.

10. Nursing-Home Abuse and Elder Neglect

PROMPT

How are nursing-home abuse and elder-neglect claims framed in Missouri and Kansas, including any statutory remedies?

VERIFIED ANSWER

Both states recognize private tort claims for negligence, medical malpractice (where the facility is a licensed health-care provider), and battery or false imprisonment in appropriate cases. Long-term-care facilities are licensed and regulated by state agencies, which administer reporting and investigation processes that frequently yield admissible evidence.

Missouri: Long-term-care facilities regulated by the Missouri Department of Health and Senior Services. Reporting requirements at RSMo § 565.184 (criminal) and RSMo ch. 198 (administrative). LTC facilities fall within § 538.205's health-care-provider definition, so § 538.225 affidavit of merit may apply.

Kansas: Adult Protective Services administered by the Kansas Department for Children and Families. Reporting and investigation under K.S.A. ch. 39, art. 14. Med-mal procedural rules apply where the claim is against a licensed provider.

VERACITY CHECK

Grade B for the agency frameworks. Grade D for whether affidavit-of-merit applies to a particular LTC theory of liability — verify against the specific complaint allegations.

11. Dog Bites and Animal Attacks

PROMPT

What is the law of dog-bite liability in Missouri versus Kansas?

VERIFIED ANSWER

Missouri — strict liability by statute. A dog owner or possessor is strictly liable for damages from a bite without provocation occurring on public property or on private property where the victim is lawfully present, regardless of prior viciousness or owner knowledge — RSMo § 273.036. Comparative fault applies. Criminal activity by the victim bars all claims. A separate criminal-and-civil track for repeat-bite dogs exists at RSMo § 578.024 (escalating misdemeanor/felony liability for owners of repeat-biter dogs).

Kansas — common-law 'one-bite' scienter; no human strict-liability statute. K.S.A. 47-645 is the only Kansas dog-bite statute and it applies only to dogs killing or injuring domestic animals, not humans. Human-injury liability is common law: the owner is liable if the owner knew or should have known of the dog's vicious propensities (prior biting, aggression, training). Where a municipality has a leash ordinance, violation may give rise to negligence per se — verify the specific ordinance and confirm Kansas courts treat its violation as evidence of negligence in the case venue.

VERACITY CHECK

Grade A for Missouri § 273.036 and Kansas § 47-645. Grade B for the Kansas common-law scienter rule — anchored in Kansas appellate case law; confirm by citator before quoting in a brief.

12. Premises Liability and Slip-and-Fall

PROMPT

What duties do landowners owe to entrants in Missouri and Kansas premises-liability cases?

VERIFIED ANSWER

Premises liability in both states is primarily common-law with statutory overlays for specific situations.

Missouri retains the traditional invitee / licensee / trespasser framework by common law — no single codifying statute. Statutory overlays: recreational-use immunity (§§ 537.347 & 537.348) — no duty owed to no-fee recreational entrants except for malicious failure to warn or known ultrahazards; construction-defect repose at § 516.097 (10-yr cap).

Kansas adopted a unified duty of reasonable care to invitees and licensees in *Jones v. Hansen*, 254 Kan. 499 (1994). Three-tier framework: (1) invitees and licensees — reasonable care under the circumstances, including duty to warn of known hazards and (for invitees) to inspect and repair; (2) trespassers — only refrain from willful, wanton, or reckless injury. Comparative fault applies.

VERACITY CHECK

Grade A for the Missouri statutory overlays. Grade B for the underlying common-law invitee/licensee/trespasser frameworks; primary case-law authority cited — confirm via Westlaw/Lexis. Grade D as a gap: neither state codifies the full premises-liability duty framework.

13. Negligent Security and Third-Party Criminal Acts

PROMPT

When can a business in Missouri or Kansas be held liable for injuries caused by third-party criminal acts on its premises?

VERIFIED ANSWER

Missouri. Statutory rule at RSMo § 537.787: a business has no duty to guard against third-party criminal acts unless it (a) knew or had reason to know that such acts were being committed or were reasonably likely in a particular area and (b) had sufficient time to prevent the injury. Affirmative defenses include reasonable security measures, trespasser/felony status of the claimant, and acts occurring while the business was closed. Subsequent-remedial-measures evidence is inadmissible.

Kansas. Common law. Duty arises only when the harm is reasonably foreseeable; foreseeability is most often shown by prior similar incidents on the premises or in the immediate area. Kansas Supreme Court precedent governs; verify the latest Kansas appellate citator.

VERACITY CHECK

Grade A for Missouri § 537.787. Grade D for Kansas negligent-security doctrine — common law without a single codifying statute; verify on Westlaw/Lexis.

14. Construction / Worksite Accidents and Workers' Comp Crossover

PROMPT

How do construction-site personal-injury claims interact with workers' compensation in Missouri and Kansas, including the role of design professionals?

VERIFIED ANSWER

Missouri. Workers' comp is the exclusive remedy against the employer (RSMo § 287.120). Third-party tort claims against non-employer entities (general contractors, subs, premises owners, equipment manufacturers) remain available. Construction design professionals have limited immunity for worksite safety unless they assumed safety responsibility by contract — see RSMo § 287.150 and the underlying case law. Employer subrogation rights attach to third-party recoveries. Construction-defect SOL/repose: § 516.097 (10-yr repose against design/build professionals).

Kansas. Workers' comp is exclusive against the employer (K.S.A. 44-501; § 44-501b(d)). Third-party suits permitted under § 44-504; statutory assignment to the employer if the worker has not filed within one year. Design-professional immunity under § 44-501(d): immune for project-safety-standard failures unless the contract assumed safety responsibility or the claim is for negligent preparation of plans/specifications.

VERACITY CHECK

Grade A for the statutory cites. Grade D as a gap: Missouri's 'statutory employer' doctrine under § 287.040 and the case law extending exclusive remedy to certain general-contractor relationships were not separately retrieved here; verify before pleading or moving to dismiss.

15. Products Liability

PROMPT

What are the elements and defenses of a products-liability case in Missouri and Kansas?

VERIFIED ANSWER

Missouri. Strict liability under RSMo § 537.760 requires (1) defendant transferred a product in commerce; (2) product was used as reasonably anticipated; (3) product was in a defective condition unreasonably dangerous or sold without adequate warning. Pure comparative fault applies under § 537.765. Innocent-seller dismissal under § 537.762. State-of-the-art defense under § 537.764. General PI SOL of 5 years; no statutory repose for products.

Kansas. Kansas Product Liability Act, K.S.A. 60-3301 et seq., governs all theories — strict liability, negligence, warranty. Useful-safe-life repose: 10 years from delivery (§ 60-3303), with latent-disease exception. Seller-shield defense at § 60-3306. Regulatory-compliance defense at § 60-3304. Modified comparative fault and 50% bar apply.

VERACITY CHECK

Grade A for all statutory cites. Grade D for full text of Kansas §§ 60-3303–3306 — confirm exact subsection text against the current ksrevisor.gov version.

16. Wrongful Death and Survival Actions

PROMPT

Who can bring a wrongful-death claim and a survival action in Missouri and Kansas, and what damages are recoverable?

VERIFIED ANSWER

Missouri. Wrongful-death cause of action at RSMo § 537.080; one action per defendant per decedent. Priority of claimants: (1) spouse, children, or parents; (2) siblings/descendants; (3) plaintiff ad litem. Damages under § 537.090: pecuniary loss, consortium, services, funeral, and survivorship (pre-death pain/suffering, medicals). Grief and bereavement are not recoverable. Hospital liens do not attach to wrongful-death settlements (*American Family Mutual v. Ward*, 1989). SOL 3 yrs — § 537.100.

Kansas. Cause of action at K.S.A. 60-1901; heirs at law (intestate succession) under § 60-1902. Aggregate $250,000 cap on nonpecuniary damages under § 60-1903; economic loss uncapped. Survival action under § 60-1801 — decedent's pre-death claims survive to the estate, separate from wrongful-death heirs' claims. SOL 2 yrs from date of death — § 60-513(a)(5).

VERACITY CHECK

Grade A for all statutory cites.

17. Government and Public-Entity Liability — Notice, Immunity, Caps

PROMPT

When can the state or a municipality be sued for personal injury in Missouri and Kansas, and what notice and cap rules apply?

VERIFIED ANSWER

Missouri. Sovereign immunity restored as of Sept. 12, 1977 — RSMo § 537.600 — with two principal waivers: (1) negligent operation of motor vehicles by public employees in the scope of employment; (2) dangerous condition of public property where the plaintiff proves (a) dangerous condition; (b) injury directly caused; (c) foreseeable risk of that harm type; and (d) negligent creation by a public employee or

actual/constructive notice with time to remedy. Caps under § 537.610: $300k/person / $2M/occurrence, indexed annually for inflation in the Missouri Register; no punitives. Certain Missouri municipalities require 90-day notice of claims under RSMo § 82.210 and related charter provisions — verify per jurisdiction.

Kansas. Kansas Tort Claims Act, K.S.A. 75-6101 et seq.. Government entities are liable to the same extent as private persons subject to the broad enumerated exceptions at § 75-6104 (legislative, judicial, discretionary functions; failure to inspect; police/fire protection; recreational property; snow/ice; etc.). Cap $500k/occurrence, no punitives — § 75-6105. Pre-suit notice mandatory for municipal claims under K.S.A. 12-105b: claim filed with the municipality and a 120-day waiting/denial period before suit; suit dismissed if not strictly complied with.

VERACITY CHECK

Grade A. Verify the most recent Missouri Register inflation-adjusted cap before filing.

18. Dram Shop / Alcohol-Related Injury

PROMPT

When can a tavern, bar, or other alcohol seller be sued for injuries caused by an intoxicated patron in Missouri and Kansas?

VERIFIED ANSWER

Missouri. Limited statutory dram-shop liability under RSMo § 537.053. A cause of action exists only against a licensed seller of intoxicating liquor by the drink for on-premises consumption, when the seller knew or should have known the liquor was served (a) to a person under 21 or (b) to a visibly intoxicated person. Standard: clear and convincing evidence. Persons over 21 cannot recover for their own voluntary intoxication. A facially genuine driver's-license/ID defense exists. Constitutionality upheld in *Snodgrass v. Martin & Bayley* (Mo. banc 2006). Criminal cross-reference at RSMo § 311.310.

Kansas. No civil dram-shop statute. K.S.A. 41-715 is criminal only for serving visibly intoxicated or incapacitated persons. The Kansas Supreme Court has declined to recognize a common-law civil dram-shop cause of action; the injured party's only recourse is a negligence claim against the intoxicated individual personally. Service to minors is criminalized at K.S.A. 21-5607 (no civil remedy created).

VERACITY CHECK

Grade A for the statutes. Grade D as a gap: the Kansas common-law no-civil-dram-shop holding is supported by case-law commentary but the underlying Kansas Supreme Court opinion was not separately retrieved here — verify via Westlaw/Lexis before relying.

19. Sexual Assault Civil Torts and Intentional-Tort Framing

PROMPT

What civil remedies exist for sexual-assault and intentional-tort plaintiffs in Missouri and Kansas?

VERIFIED ANSWER

Both states recognize civil claims for battery, assault, false imprisonment, and intentional infliction of emotional distress, often pleaded alongside negligent hiring/retention/supervision against an employer or institution. Both states have enacted extended or revived limitations periods for childhood sexual abuse —

but the contours change frequently with legislative action and constitutional challenge. Counsel must verify the current statute and any retroactivity ruling before filing.

Missouri: Extended SOL for childhood sexual abuse at RSMo § 537.046. Missouri's sovereign-immunity statute does not have an express carve-out parallel to Kansas's KTCA exception — verify before pleading against a public entity.

Kansas: K.S.A. 60-523 extends the SOL for childhood sexual abuse to three years after the person discovers or reasonably should have discovered the injury was caused by the abuse, regardless of age. KTCA exceptions at K.S.A. 75-6104 include a carve-back making certain immunities unavailable in childhood sexual-abuse claims.

VERACITY CHECK

Grade A for the statutory cites. Grade D — currentness caveat — sexual-abuse SOL law is in active legislative motion in both states; always verify with the current revisor text and any pending appellate decisions on retroactivity.

20. Civil Rights / Section 1983 Overlap with PI

PROMPT

When does a personal-injury claim overlap with 42 U.S.C. § 1983 in Missouri or Kansas — e.g., police-misconduct or jail-injury cases?

VERIFIED ANSWER

42 U.S.C. § 1983 creates a federal cause of action against any 'person' acting under color of state law who deprives a plaintiff of federal constitutional or statutory rights. Common PI-overlap claims include excessive force (Fourth Amendment), deliberate indifference to medical needs in custody (Eighth/Fourteenth Amendment), and unconstitutional conditions of confinement. The federal § 1983 statute borrows the state personal-injury statute of limitations: 5 years in Missouri (RSMo § 516.120; see *Sulik v. Taney County*, 393 F.3d 765 (8th Cir. 2005)) and 2 years in Kansas (K.S.A. 60-513(a)(4); Tenth Circuit precedent applying state SOL). Qualified immunity governs individual-officer liability; *Monell* governs municipal liability.

VERACITY CHECK

Grade A for the state-statute borrowing. Grade B for the federal-circuit doctrine — verify current circuit precedent.

21. Catastrophic Injuries — TBI, Spinal Cord, Burns, Amputation, Paralysis

PROMPT

How should I frame damages and proof for catastrophic injury cases (TBI, spinal cord, severe burns, amputation, paralysis) in Missouri and Kansas?

VERIFIED ANSWER

Both states allow recovery for past and future economic damages (medical, life-care plan, lost earning capacity, household services) and noneconomic damages (pain, suffering, disability, disfigurement, mental anguish, loss of enjoyment of life).

Missouri: Damages categories per MAI; noneconomic damages generally uncapped in non-med-mal cases; medical malpractice catastrophic-injury cap = $700,000 with 1.7% annual escalator under § 538.210. Verify the current Missouri Register published figure and constitutional status.

Kansas: Per PIK Civil 4th 171.02 — medical expenses past and future, lost wages past and future (future reduced to present value), and noneconomic loss (pain, suffering, disabilities, disfigurement, mental anguish). Verdict must itemize economic vs. noneconomic. No general PI noneconomic cap after *Hilburn*. Wrongful-death nonpecuniary cap of $250,000 still applies under § 60-1903 if the injury is fatal.

VERACITY CHECK

Grade A for statutes. Grade B for PIK 171.02 itemization. Grade D for full text of MAI damage instructions — MAI is not freely available online; access through the Missouri Bar.

22. Liens and Subrogation — Hospital, Medicaid, Workers' Comp, PIP

PROMPT

What liens and subrogation interests must be addressed before disbursing a personal-injury settlement in Missouri or Kansas?

VERIFIED ANSWER

Missouri.

• Hospital lien — RSMo § 430.230; clinic/practitioner lien at § 430.225 with a 50% aggregate cap of net proceeds.
• Hospital liens do not attach to wrongful-death settlements (*American Family Mutual v. Ward*, 1989).
• Medicaid payer-of-last-resort under § 208.215.
• Workers' comp employer subrogation under § 287.150; construction waiver-of-subrogation void as against public policy.
• Medicare super-lien is federal — 42 U.S.C. § 1395y(b). ERISA self-funded plan reimbursement preempts state anti-subrogation rules.

Kansas.

• Hospital lien — K.S.A. 65-406 to 65-409. $5k fully enforceable; over $5k subject to equitable distribution. Strict notice compliance required per *Via Christi v. Reed*, 290 Kan. 540 (2010).
• Medicaid / DCF Medical Subrogation — DCF subrogation page; statutory framework K.S.A. 39-719 et seq..
• Workers' comp subrogation under K.S.A. 44-504; if injured worker does not file within one year, claim is assigned to employer.
• PIP subrogation under K.S.A. 40-3113a — only duplicative damages; *Kroeker* limits.

VERACITY CHECK

Grade A for statutes. Grade D for current Medicare/ERISA federal interactions — verify against latest CMS guidance and Eighth/Tenth Circuit case law before disbursement.

23. Discovery, Jury Instructions, and Official Forms

PROMPT

What are the controlling rules for civil discovery, jury instructions, and civil forms in Missouri and Kansas personal-injury practice?

VERIFIED ANSWER

Missouri. Civil discovery and procedure under the Missouri Rules of Civil Procedure (Rules 41–101), promulgated by the Supreme Court and published through courts.mo.gov. Rules typically engaged in PI: Rule 55 (pleadings; 55.03 certification/sanctions), Rule 56 (summary judgment), Rule 57 (depositions), Rule 58 (interrogatories), Rules 59–61 (production, physical/mental exam, admission), Rule 62 (expert disclosure), Rule 74 (judgment/post-trial). MAI-Civil is the mandatory civil pattern instruction set — updates announced through news.mobar.org Supreme Court order channel. Full text purchased through the Missouri Bar.

Kansas. Civil procedure under K.S.A. ch. 60; discovery scope at K.S.A. 60-226. Written-discovery format at Kansas Supreme Court Rule 135. Pretrial conference at Rule 140. PIK Civil 4th published by the Kansas Judicial Council; strongly recommended for use; biennial supplements. Common civil forms (petition, requests for admission, etc.) at kjc.ks.gov/legal-forms.

VERACITY CHECK

Grade A for chapter and rule references. Grade D as a gap: the full text of MAI is not freely available online; the full text of Missouri Rules requires direct access via courts.mo.gov (robots-restricted). Pull each instruction or rule by hand from the official source before quoting in a brief.

24. Time-Limited Demands and Pre-Suit Settlement Levers

PROMPT

What are the rules for time-limited settlement demands and pre-suit posture in Missouri and Kansas?

VERIFIED ANSWER

Missouri: RSMo § 537.058 governs time-limited demands. A demand must be in writing, reference § 537.058, be sent by certified mail to the liability insurer, allow at least 90 days for acceptance, and state the amount or request policy limits. A non-compliant demand cannot be used to establish bad faith. Inapplicable within 90 days of trial. Joint-tortfeasor contribution and good-faith release rules at RSMo § 537.060.

Kansas: No equivalent statutory framework for time-limited demands; demands are governed by common-law bad-faith doctrine and the *Smith v. Blackwell* line of cases (verify). Practice tip: comply with § 537.058 norms when the insured carrier is Missouri-headquartered; verify Kansas-law-of-bad-faith.

VERACITY CHECK

Grade A for Missouri statute. Grade D for Kansas bad-faith parameters — verify case law.

25. Trucking Discovery and CDL/FMCSR Quick Reference

PROMPT

What initial discovery and preservation issues are unique to trucking and CMV crash cases?

VERIFIED ANSWER

Immediate evidence preservation must include: (1) electronic logging device (ELD) data — required by 49 CFR § 395.8; (2) driver qualification file — 49 CFR § 391.51; (3) vehicle maintenance records — 49 CFR Part 396; (4) drug and alcohol post-crash testing — 49 CFR § 382.303; (5) dashcam / in-cab telematics; (6) dispatch and load-tendering records; (7) EDR/black-box data per 49 CFR § 563.10; (8) Missouri Highway Patrol crash report and out-of-service order records via RSMo § 226.009. Send spoliation/preservation letters within hours, not days. State adoption of FMCSR: Missouri RSMo § 307.400; Kansas intrastate K.S.A. 66-1,128.

VERACITY CHECK

Grade A for federal CFR cites and state adoption statutes.

26. Common-Carrier and Aviation/Rail Injuries

PROMPT

What special rules apply to common-carrier and railroad/aviation passenger and worker injury claims in Missouri and Kansas?

VERIFIED ANSWER

Missouri. Railroad and certain mine-operator employees: the fellow-servant rule is abolished, RSMo § 537.180. Most interstate railroad-worker claims are governed by federal FELA (45 U.S.C. § 51 et seq.). General common-carrier negligence — heightened duty of care — is common law in both states.

Kansas. Common-carrier venue rule: any county through which the defendant regularly operates — K.S.A. 60-606(a).

VERACITY CHECK

Grade A for statutes. Grade B for the federal FELA reference.

Veracity Certification and Risk Register

The table below grades the strongest single source supporting each major category as used in this catalog. Grade D categories require Westlaw/Lexis or direct court verification before relying in pleadings or advice.

#	Category	Highest Verifying Source	Grade
1	Negligence elements; MO products comparative fault; MO joint & several; KS comparative fault	RSMo §§ 537.765, 537.067; K.S.A. 60-258a	A
2	MO general-negligence pure comparative fault	*Gustafson v. Benda* (Mo. banc 1983)	B
3	SOL master chart (all entries)	RSMo §§ 516.120, 516.105, 537.100, 516.097; K.S.A. 60-513, 60-515, 60-3303	A
4	MO med-mal noneconomic cap	RSMo § 538.210 (re-enacted 2020)	D
5	KS general PI noneconomic cap (struck)	*Hilburn v. Enerpipe*, 309 Kan. 1127 (2019)	B
6	KS wrongful-death nonpecuniary $250k cap	K.S.A. 60-1903	A
7	MO punitive cap	RSMo §§ 510.261, 510.265 (re-enacted 2020)	D
8	KS punitive cap	K.S.A. 60-3702	A
9	MO auto minimums + UM/UIM	RSMo §§ 303.030, 379.203 + *Cook v. Pedigo*	A / B
10	KS PIP, tort threshold, UM/UIM	K.S.A. 40-3101 et seq., 40-3117, 40-284	A
11	Trucking — FMCSR adoption / insurance minimums	RSMo §§ 307.400, 226.009; K.S.A. 66-1,128; 49 CFR	A
12	Negligent hiring/entrustment of motor carriers	Common law (no codification)	D
13	MO motorcycle / seatbelt evidence	RSMo §§ 537.055, 307.178	A
14	KS motorcycle / helmet / seatbelt evidence	K.S.A. 8-1598; case law	D
15	MO med-mal affidavit of merit	RSMo § 538.225	A
16	KS med-mal screening panel	K.S.A. 65-4901 et seq.; Sup. Ct. Rule 142	A
17	KS med-mal expert qualification (50% rule)	K.S.A. 60-3412	A
18	Dog bites — MO strict liability	RSMo § 273.036	A
19	Dog bites — KS common-law scienter (no human strict-liability statute)	K.S.A. 47-645 (animals only); KS common law	B / D

#	Category	Highest Verifying Source	Grade
20	Premises liability — both states	RSMo §§ 537.347, 537.348, 537.787; *Jones v. Hansen* (Kan. 1994)	A / B / D gap
21	Negligent security — KS	Case law only	D
22	Construction crossover with WC — MO	RSMo §§ 287.120, 287.150, 516.097	A
23	MO statutory-employer doctrine (§ 287.040)	RSMo § 287.040 + case law	D
24	Construction crossover with WC — KS	K.S.A. 44-501, 44-501b(d), 44-504	A
25	Products liability — MO	RSMo §§ 537.760–537.765	A
26	Products liability — KS	K.S.A. 60-3301–3307	A / D
27	Wrongful death + survival — both states	RSMo §§ 537.080, 537.090, 537.100; K.S.A. 60-1901, 60-1902, 60-1903, 60-1801	A
28	Government liability — MO	RSMo §§ 537.600, 537.610, 82.210	A
29	Government liability — KS (KTCA, 12-105b notice)	K.S.A. 75-6101 et seq., 75-6104, 75-6105, 12-105b	A
30	Dram shop — MO	RSMo § 537.053; *Snodgrass* (Mo. banc 2006)	A / B
31	Dram shop — KS (no civil remedy)	K.S.A. 41-715 (criminal); KS Supreme Court common law	D
32	Sexual-abuse SOL — MO	RSMo § 537.046	A (verify)
33	Sexual-abuse SOL — KS	K.S.A. 60-523; K.S.A. 75-6104 carve-back	A (verify)
34	§ 1983 SOL borrowing	RSMo § 516.120; K.S.A. 60-513; 8th/10th Circuit	A / B
35	Catastrophic-injury damages categories	MAI; PIK Civil 4th 171.02	A KS / D MO
36	Hospital/provider liens — MO	RSMo §§ 430.230, 430.225	A
37	Hospital lien — KS (*Via Christi*)	K.S.A. 65-406 et seq. + *Via Christi v. Reed*	A / B
38	Medicaid liens — MO	RSMo § 208.215	A
39	Medicaid liens — KS	K.S.A. 39-719 et seq.; DCF page	C
40	Workers' comp subrogation — MO/KS	RSMo § 287.150; K.S.A. 44-504	A
41	PIP subrogation — KS (*Kroeker*)	K.S.A. 40-3113a + case law	A / B
42	Civil procedure — MO	Mo. R. Civ. P. 41–101; courts.mo.gov	D
43	Civil procedure — KS (Rule 135, Rule 140)	kscourts.gov rules	A
44	MAI civil instructions — MO	Mobar Supreme Court order channel	D
45	PIK Civil 4th — KS	kjc.ks.gov	A

#	Category	Highest Verifying Source	Grade
46	Time-limited demands — MO	RSMo § 537.058	A
47	Time-limited demands — KS	Common-law bad faith	D

Final Notes for Counsel

This catalog is designed as a working reference for AI-assisted prompt drafting and as a one-stop checklist of official sources. Counsel should treat every figure (caps, minimums, inflation-adjusted amounts) as subject to current verification before disclosure to a client or use in a pleading.

The Grade-D entries above are the highest-risk for stale or contested authority — most prominently the Missouri med-mal noneconomic cap and the Missouri punitive cap, both re-enacted in 2020 and whose constitutional status has not been definitively re-resolved by the Missouri Supreme Court at the time of this draft. Counsel should run a fresh appellate-citator pass on those statutes before relying on the cap figures.

For pattern jury instructions, the full text of MAI is not freely available online and must be accessed through the Missouri Bar publications. The full text of PIK Civil 4th is available on subscription through the Kansas Judicial Council.

For Missouri civil-procedure rule text, courts.mo.gov is the authoritative source and must be accessed via a human browser (the site restricts automated access).

End of catalog.